

STATE OF NEW YORK

6168--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 26, 2025

Introduced by M. of A. LUNSFORD -- read once and referred to the Committee on Labor -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the labor law, in relation to increasing the unemployment insurance minimum weekly benefit amount

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph (a) of subdivision 5 of section 590 of the labor
2 law, as amended by section 8 of part 0 of chapter 57 of the laws of
3 2013, is amended to read as follows:

4 (a) A claimant's weekly benefit amount shall be one twenty-sixth of
5 the remuneration paid during the highest calendar quarter of the base
6 period by employers, liable for contributions or payments in lieu of
7 contributions under this article, provided the claimant has remuneration
8 paid in all four calendar quarters during [~~his or her~~] such claimant's
9 base period or alternate base period, but shall not be less than eight
10 hundred sixty dollars. However, for any claimant who has remuneration
11 paid in all four calendar quarters during [~~his or her~~] such claimant's
12 base period or alternate base period and whose high calendar quarter
13 remuneration during the base period is three thousand five hundred
14 seventy-five dollars or less, the benefit amount shall be one twenty-
15 fifth of the remuneration paid during the highest calendar quarter of
16 the base period by employers liable for contributions or payments in
17 lieu of contributions under this article, but shall not be less than
18 eight hundred sixty dollars. A claimant's weekly benefit shall be one
19 twenty-sixth of the average remuneration paid in the two highest quar-
20 ters paid during the base period or alternate base period by employers
21 liable for contributions or payments in lieu of contributions under this
22 article when the claimant has remuneration paid in two or three calendar
23 quarters provided however, that a claimant whose high calendar quarter
24 is four thousand dollars or less but greater than three thousand five
25 hundred seventy-five dollars shall have a weekly benefit amount of one
26 twenty-sixth of such high calendar quarter, but shall not be less than
27 eight hundred sixty dollars. However, for any claimant who has remunera-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

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tion paid in two or three calendar quarters during ~~[his or her]~~ such
claimant's base period or alternate base period and whose high calendar
quarter remuneration during the base period is three thousand five
hundred seventy-five dollars or less, the benefit amount shall be one
twenty-fifth of the remuneration paid during the highest calendar quar-
ter of the base period by employers liable for contributions or payments
in lieu of contributions under this article, but shall not be less than
eight hundred sixty dollars. Any claimant whose high calendar quarter
remuneration during the base period is more than three thousand five
hundred seventy-five dollars shall not have a weekly benefit amount less
than ~~[one]~~ eight hundred ~~[forty-three]~~ sixty dollars. The weekly benefit
amount, so computed, that is not a multiple of one dollar shall be
lowered to the next multiple of one dollar. On the first Monday of
September, nineteen hundred ninety-eight the weekly benefit amount shall
not exceed three hundred sixty-five dollars nor be less than forty
dollars, until the first Monday of September, two thousand, at which
time the maximum benefit payable pursuant to this subdivision shall
equal one-half of the state average weekly wage for covered employment
as calculated by the department no sooner than July first, two thousand
and no later than August first, two thousand, rounded down to the lowest
dollar. On and after the first Monday of October, two thousand fourteen,
the weekly benefit shall not be less than one hundred dollars, nor shall
it exceed four hundred twenty dollars until the first Monday of October,
two thousand fifteen when the maximum benefit amount shall be four
hundred twenty-five dollars, until the first Monday of October, two
thousand sixteen when the maximum benefit amount shall be four hundred
thirty dollars, until the first Monday of October, two thousand seven-
teen when the maximum benefit amount shall be four hundred thirty-five
dollars, until the first Monday of October, two thousand eighteen when
the maximum benefit amount shall be four hundred fifty dollars, until
the first Monday of October, two thousand nineteen when the maximum
benefit amount shall be thirty-six percent of the average weekly wage
until the first Monday of October, two thousand twenty when the maximum
benefit amount shall be thirty-eight percent of the average weekly wage,
until the first Monday of October, two thousand twenty-one when the
maximum benefit amount shall be forty percent of the average weekly
wage, until the first Monday of October, two thousand twenty-two when
the maximum benefit amount shall be forty-two percent of the average
weekly wage, until the first Monday of October, two thousand twenty-
three ~~[when the maximum benefit amount]~~. On and after the first Monday
of October, two thousand twenty-five, the weekly benefit shall not be
less than eight hundred sixty dollars, nor shall ~~[be]~~ it exceed forty-
four percent of the average weekly wage, until the first Monday of Octo-
ber, two thousand twenty-four when the maximum benefit amount shall be
forty-six percent of the average weekly wage, until the first Monday of
October, two thousand twenty-five when the maximum benefit amount shall
be forty-eight percent of the average weekly wage, until the first
Monday of October, two thousand twenty-six and each year thereafter on
the first Monday of October when the maximum benefit amount shall be
fifty percent of the average weekly wage provided, however, that in no
event shall the maximum benefit amount be reduced from the previous
year.

§ 2. This act shall take effect on the sixtieth day after it shall
have become a law.